APPENDIX – II B

DEED OF AGREEMENT

THIS DEED OF AGREEMENT is made on this _____ day of _____20_____at_____Assam.

BETWEEN

The State of Assam, Health and Family Welfare Department, represented by _____, Aged about _____, S/O, Late _____, presently holding the post of _____ to the government of Assam, Health and Family Welfare Department, (which expression shall, unless repugnant to the context here to, shall mean and include his/her successors, administrators, attorneys, assigns and any person claiming under him/her), here in after referred to as **FIRST PARTY** of the First Part;

-AND-

Dr. _____, aged about _____years, S/O, D/O, W/O_____, resident of_____ P.O.-_____, P.S._____, District-_____PIN-_____, State-_____(which expression shall, unless repugnant to the context here to, shall mean and include his/her legal heirs, successors, administrators, attorneys, assigns and any person claiming under him/her), here in after referred to as **SECOND PARTY** of the Second Part;

WHEREAS, the Second Party has obtained MBBS Degree from_____ Medical College & Hospital situated at _____, and, after completion of the said course, the Second Party, is now intending to take admission in Post Graduate Course in (MD/MS/Diploma subject) in the Medical College & Hospital of Assam namely _____ **at** _____.

AND WHEREAS, the Second Party shall bear only the admission fees, hostel fees and other charges for the aforesaid Post Graduate Course/Post Graduate Diploma Course, and the First Party shall give the monthly stipend to the Second Party during the period of the said Post Graduate Course/Post Graduate Diploma Course;

AND WHEREAS, the First Party, i.e., the state of Assam shall incur huge expenditure from the state Exchequer for the purpose of imparting education to the Second Party in pursuing the Post Graduate Corse/Post Graduate Diploma Course in the above noted State Medical College & Hospital of Assam, namely

AND WHERIES, in the interest of public service, the First Party has decided to give admission to the Second Party in the said Post Graduate Degree Course/Post Graduate Diploma Course in the above notes State Medical College & Hospital of Assam, namely _____ **at** _____, in the State of Assam, and the First Party shall bear the expenses of his/her education, other than the admission fees, hostel fees and other charges, in pursuing said Post Graduate Degree Course/Post Graduate Diploma Course;

NOW THEREFORE,THIS AGREEMENT WITNESSETH THE FOLLOWING TERMS AND CONDITIONS:

1. That after completion of his/her Post Graduate Course/Post Graduate Diploma Course, the Second Party shall compulsorily serve the Government of Assam for a mandatory period of 2 (two) years and upto a maximum period of 10 (ten) years upon offer of appointment in any State Government Service in the Health and allied sector, including any eligible agency notified by the Health & Family Welfare Department, and /or any other State/Central Government sponsored scheme/s, or, in any part of the state of Assam, if the Government desires his/her service.

2. That the First Party shall have the authority to utilize the service of the student i.e., the Second Party in any Hospital/Medical Institution within the State of Assam where there is necessity of a specialist Doctor in the Interest of public service, including any eligible agency notified by the Health and Family Welfare Department, and/or any other State/Central Government sponsored scheme/s, or, in any part of the State of Assam, if the Government desires his/her service.

3. That Second Party shall be governed by the Medical Colleges of Assam (Regulation of Admission into Post Graduate Degree and Diploma courses) Rule, 2021, as amended up to date.

4. That in Case of any breach of the terms and conditions as stated here in above, the Second Party shall be bound to pay an amount of Rs. 20,00,000/- (Rupees Twenty Lakhs) only in respect of Post Graduate Degree candidate, or Rs, 15,00,000/-(Rupees fifteen Lakhs) only in respect of Post Graduate Diploma Candidate as per Rule 9(i) of Medical Colleges of Assam (Regulation of Admission Into Post Graduate Degree and Diploma Courses) Rules, 2021, to the First Party, i.e. the Government of Assam, Health and Family Welfare Department, on account of expenses borne for the Second Party in pursuing the aforesaid Post Graduate Course.

5. That in case of failure to pay the compensation by the Second Party as mentioned above, the First Party shall be at liberty to file money suit and/or to take any other appropriate legal action against the Second Party in the competent court at Guwahati, Assam, for recovering the same at the risk and cost of the Second Party.

IN WITNESSES WHEREOF, the parties hereto, having fully understood the terms and conditions of this agreement and with full knowledge and sound mind have signed, sealed and delivered these presents on the day, month and year as mentioned above.

WITNESSES

1. (Signature of the First Party)

2. (Signature of the Second Party)